

Indirect Rule and Colonial Intervention: Chiefs and Agrarian Change in Nyasaland, ca. 1933 to the Early 1950s*

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Introduction

In the 1980s, an increasing number of historians began to critically examine the policy of indirect rule, which was implemented as the governing principle in most parts of British Africa in the 1920s and 1930s. The studies mainly focus on the concept of “invention of tradition” as developed by Terence Ranger in an article from 1983.¹ Colonial governments not only relied on rural elites, but also were active in the creation of tribal identities and customary law. In more recent years, several scholars including Ranger have cast doubt on the usefulness of speaking of invention since it implies a conscious construction of identities and tends to exaggerate the powers of the colonial rulers.² Nevertheless, indirect rule marked an ideological change in British Africa, away from more liberal and market-oriented policies towards social-conservative ideas of protecting rural Africans from modernity. Or, to quote the Colonial Office in Britain, indirect rule was an attempt to find an administrative system for people “not yet able to stand by themselves under the strenuous conditions of the modern world.”³ Some scholars have even suggested that indirect rule partly aimed to consolidate pre-capitalist structures. In the case of Nyasaland, Joey Power for example, claims that by giving greater powers to local traditional authorities, indirect rule aimed to “thwart class formation” and leave the “petit

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¹ Terence Ranger, “The Invention of Tradition in Colonial Africa,” in Eric Hobsbawm and Terence Ranger, eds., *The Invention of Tradition* (Cambridge: Cambridge University Press, 1983).

² Terence Ranger, “The Invention of Tradition Revisited: The Case of Africa,” in Terence Ranger and Olufemi Vaughan, eds., *Legitimacy and the State in Twentieth Century—Essays in Honour of A.H.M. Kirk Greene* (London: Palgrave, 1993), 81. See also Sara Berry, “Hegemony on a Shoestring: Indirect Rule and Access to Land,” *Africa: Journal of the International African Institute* 62, 3 (1992), 327–55; Thomas Spear, “Neo-Traditionalism and the Limits of Invention in British Colonial Africa,” *Journal of African History* 44, 1 (2003), 3–27.

³ Public Record Office (PRO), Colonial Office (CO) 525/136/16, Memorandum on Native Policy in East Africa, 1930.

bourgeoisie” in the political wilderness.⁴ In that sense, the British colonial authorities were “conservationists – of people as well as game” to quote Cain and Hopkins.⁵

In the analyses of the socioeconomic consequences of indirect rule, there is a tendency to neglect the fact that there are two sides to every story, one about preserving social structures and one about facilitating change. From the 1920s onwards, colonial administrations increasingly intervened in rural areas with the aim of changing farming methods lacking major technological and institutional changes. For this purpose, they planned to use chiefs and village headmen to disseminate information and propaganda. Grishow acknowledges in his discussion on chiefs in southern Ghana, that indirect rule became the solution whereby “development could be achieved without disrupting traditional community.”⁶ The colonial rulers regarded indirect rule as a viable strategy to solve the dilemma of supporting a further expansion of African commercial agriculture and, at the same time, prevent the rise of capitalist relations of production. Indirect rule can therefore be seen as one of the greatest contradictions of colonial rule in terms of “preserving the past, promoting economic development and protecting Africans from the traumas of modernity.”⁷

This paper deals with this contradiction by discussing the role of indirect rule in the early years of agricultural extension services in Nyasaland (1930s to early 1950s). On paper, the first two decades of agricultural extension work in Nyasaland depended on the willingness of the Native Authorities (NA) to impose regulations, disseminate information and propagate change. The question is hence to what extent indirect rule, through the work of the chiefs, facilitated colonial intervention in the local agricultural economies? The paper approaches this question by comparing two contrasting cases: Thyolo (known as Cholo by the colonial administration, but throughout the paper referred to as Thyolo) in southern Nyasaland and the Mzimba district in the north. The focus will be on NA Nsabwe and Ntondeza in Thyolo and NA M’mbelwa in Mzimba. Colonial authorities believed chieftainship in Thyolo to be fluid, while in Mzimba the hierarchical order was seen as well defined and the local elite too strong for colonial authorities to bypass the chiefs.

Chiefs as Principals and Agents

The implementation and function of indirect rule, in general, and the identification of chiefs, in particular, was a complex process affected by a wide range of factors, such as the local socioeconomic structure, history, individual characteristics of the chiefs and the colonial officers, and so on. At the same time, indirect rule was dependent upon the

⁴ Joey Power, “‘Individualism Is the Antithesis of Indirect Rule’: Cooperative Development and Indirect Rule in Colonial Malawi,” *Journal of Southern African Studies* 18, 2 (1992), 317.

⁵ P.J. Cain and A.G. Hopkins, *British Imperialism 1688–2000*, 2nd ed. (Harlow: Pearson Education, (2002), 579.

⁶ The citation is Grishow’s summary of Cowen and Shenton’s findings. See Jeff D. Grishow, “Rural ‘Community,’ Chiefs and Social Capital: The Case of Southern Ghana,” *Journal of Agrarian Change* 8, 1 (2008), 70.

⁷ Spear, “Neo-Traditionalism,” 4.

colonial authorities' static view that Africans were organized into tribes and that "Each tribe must be considered as a distinct unit.... Each tribe must be under a chief."⁸ A key problem was the identification of chiefs who would act as allies of the colonial government without losing their legitimacy among the local populations. Behind all the complexities, there was thus a fundamental challenge to indirect rule, which can be revealed by the application of the "principal-agent" (PA) approach. The focal point of principal-agent (PA) theories is the problem that occurs when cooperating parties have different goals and division of labor.⁹ Divergent interests increase transaction costs and, in a world of asymmetric information, create incentives for one party to take advantage of the other through adverse selection or moral hazard.¹⁰ The PA approach aims to identify different possible contracts regulating the relationships between the principal and the agent or, more precisely, contracts that enable the principal to coerce the agent to work towards the same goal.¹¹

The PA approach is often associated with abstract and mathematical models and has, in line with positive economics, a normative bias as different models try to detect the preferable contracts in terms of economic efficiency.¹² In this paper, the principal-agent approach is instead used in a relatively heterodox manner. Rather than employing it as a theoretical model, the PA approach is employed as a strategy of categorizing the main actors, in order to shed light on the complexity of the system of indirect rule. This paper argues that indirect rule must be understood as a double principal-agent problem. The system depended on chiefs acting as both agents and principals. They were agents in relation to the colonial authorities and principals in relation to the population in their respective communities. To what extent indirect rule facilitated colonial intervention depended on this dual nature of the principal-agent problem. By applying the PA approach we avoid the pitfalls of stressing the unique on the one hand or the universal on the other. We cannot understand the PA approach without a substantial amount of context, just as we cannot grasp the basic dynamics and contradictions without the PA approach.

⁸ James D. Graham, "Indirect Rule and the Establishment of 'Chiefs' and 'Tribes' in Cameron's Tanganyika," *Tanzania Notes and Records*. Volume 77-78 June (1976), quoted in John Iliffe, *A Modern History of Tanganyika*, (Cambridge, Cambridge University Press, 1979), 4.

⁹ M. Kathleen Eisenhardt, "Agency Theory: An Assessment and Review," *Academy of Management Review* 14, 1 (1989), 58. Historians and economic historians have employed PA approaches to discuss the efficiency and functionality of agrarian contracts, specifically share-cropping contracts. See, for example, Clive Bell, "A Comparison of Principal-Agent and Bargaining Solutions: The Case of Tenancy Contracts," in Pranab Bardhan, ed., *The Economic Theory of Agrarian Institutions* (Oxford: Clarendon Press, 1989), 73–92; Daniel A. Akerberg, "The Choice of Agrarian Contracts in Early Renaissance Tuscany: Risk Sharing, Moral Hazard, or Capital Market Imperfections," *Explorations in Economic History* 37 (2000), 241–57.

¹⁰ Gareth Austin, *Labour, Land and Capital in Ghana—From Slavery to Free Labour in Asante, 1907–1956* (Rochester, NY: University of Rochester Press, 2005), 28–29.

¹¹ Douglass C. North, *Institutions, Institutional Change and Economic Performance* (Cambridge: Cambridge University Press, 1990), 33.

¹² Eisenhardt, *Agency Theory*, 60.

Rathbone rightly stresses that it is difficult to assess the actual power of chiefs.¹³ No exact distinctions can thus be made between chiefs as agents and principals. Chiefs were, in truth, individuals with their own personal will, aspirations, and circumstances. Chieftainship, to quote Dunn and Robertson, “[...] neither behaved simply as an instrument in the hands of the colonial rulers nor that it ever drew its political power solely from its capacity to elicit the support of the colonial regime.”¹⁴ The point here is thus not to neglect the complexities of every given case, but to structure our understanding of these processes in line with the basic paradox of indirect rule and colonial intervention, namely its dependency on chiefs as both agents and principals.

Mamadani, in his classic book *Citizen and Subject* (1996), refers to indirect rule as *decentralized despotism*, meaning Africans were denied citizenship in the Empire due to their reduced status as subjects of chiefs.¹⁵ The argument implicitly presumes that chiefs acted on behalf of the colonial administration. Historians have, however, revealed that the role and identity of chiefs in colonial Africa was far from certain. Studies of the Cocoa Hold-Up in Ghana, 1937–38, have depicted chiefs uniting with African producers against the colonial state. Austin argues, for example, that the hold-ups reveal the chiefs’ “dual identity as capitalists and as political representatives of their subjects as a whole.”¹⁶ Austin’s argument suggests that the role of chiefs cannot be grasped in simple dichotomies. Chiefs identified themselves with several different interests depending on local contexts and circumstances. In short, the extent to which chiefs can be described as agents of the colonial authorities must be understood within a broader perspective of local socioeconomic change.

Indirect rule also depended on chiefs acting as principals with powers to discipline the local populations within their areas of jurisdiction. It is from this angle that the idea of imagined traditions becomes important (see above). Iliffe has, for example, revealed how colonial authorities applied various solutions to cases where no “natural” leaders existed, such as in stateless societies. They converted religious leaders into administrative chiefs and subordinated societies to neighboring chiefdoms. Despite these different strategies, there was a tendency among colonial officials to underestimate the will among many people who preferred to remain stateless.¹⁷ This weakened appointed chiefs and, in cases where appointed chiefs lacked local recognition, there were difficulties in influencing the

¹³ Richard Rathbone, *Nkrumah & the Chiefs—The Politics of Chieftaincy in Ghana 1951–60* (Oxford: James Currey, 2000), 11.

¹⁴ John Dunn and A.F. Robertson, *Dependency and Opportunity: Political Change in Ahafo* (Cambridge: Cambridge University Press, 1973), 93.

¹⁵ Mamhood Mamdani, *Citizen and Subject: Contemporary Africa and the Legacy of Late Colonialism* (Princeton: Princeton University Press, 1996).

¹⁶ Gareth Austin, “Capitalists and Chiefs in the Cocoa Hold-Ups in South Asante, 1927–1938,” *International Journal of African Historical Studies* 21, 1 (1988), 93. See also, Grishow, *Rural ‘Community,’* 83–84.

¹⁷ Iliffe, *A Modern History*, 330–34.

local populations. Local recognition was hence a precondition for a chief to actually act in the interest of the colonial administration.

Towards Indirect Rule in Nyasaland

The process of implementing indirect rule in Nyasaland began in 1912 with the District Administration (Native) Ordinance and by 1934 the system had become fully established. Chanock claims that this period was characterized by traditional authorities making greater claims to power, which they justified by referring to a glorious past.¹⁸ Joey Power, on the other hand, argues that indirect rule became part of a larger project of trying to counterbalance the uprising of a rural capitalist class rather than directly meeting the demands of the chiefs.¹⁹ In line with Power, White claims that increased numbers of anti-colonial rebellions in the years of the First World War, and the need for colonial authorities to find reliable allies, sped up the implementation of indirect rule.²⁰ We agree with the view that the process was marked by an increased willingness among colonial officials to meet the demands of the chiefs. It was, however, not part of a coherent plan, but rather an outcome of a colonial administration with a limited capacity to enforce rules and regulations.

The District Administration (Native) Ordinance, implemented in 1912, was the first step toward the formalization of indirect rule. It marked a systematic attempt by colonial authorities to structure the local elite.²¹ The colonial government appointed chiefs (then known as principal headmen) and village headmen. They were given the responsibility of reporting criminal offenses to district commissioners (DC) as well as informing commissioners about cattle movements and the inflow of migrants to areas where they were in charge. The chiefs were also held responsible for maintaining law and order in their areas although they were not allowed to conduct court cases.²² In the Shire Highlands in the southern region of Malawi, both chiefs and village headmen began to act beyond their formal powers as they acted as judges, imposed fines and, in some cases, even collected labor from their villages.²³ The colonial authorities initially reacted to this by employing repressive measures. Two amendments were made in 1917. First, it was an offense not to report criminal activities to the DCs and, second, chiefs could be fined £5 or

¹⁸ M.L. Chanock, "Ambiguities in the Malawian Political Tradition," *African Affairs* 74, 206 (1975), 328–29.

¹⁹ Joey Power, "'Individualism Is the Antithesis of Indirect Rule': Cooperative Development and Indirect Rule in Colonial Malawi," *Journal of Southern African Studies* 18, 2 (1992), 317.

²⁰ Landeg White, "Tribes and the Aftermath of the Chilembwe Rising," *African Affairs* 83, 333 (1984), 511–41.

²¹ Elias Mandala, *Work and Control in a Peasant Economy—A History of the Lower Shire Valley in Malawi, 1859–1960* (Madison: University of Wisconsin, 1990), 103.

²² PRO, CO 625/1, The District Administration (Native) Ordinance, 1912.

²³ Power, *Individualism*, 329.

sent to jail for six months if orders were not followed.²⁴ The impact was small as the colonial administration lacked the capacity to prevent chiefs from acting as magistrates.²⁵ The only option left was to alter the ordinance and allow chiefs to conduct court cases with some restrictions. This was done as the Legislative Council passed a new District Administration (Native) Ordinance in 1924.²⁶ It further strengthened the powers of the chiefs thus pressuring the governor to make a statement reassuring the European community that the colonial administration was not weak and about to lose its powers.²⁷

Despite these changes, it remained difficult for colonial authorities to use chiefs for their purposes. For example, the new ordinance stipulated that any African could be ordered to carry out public work (e.g., building and maintaining roads) for a maximum of sixty days per year without payment. It was the responsibility of chiefs and village headman to allocate laborers. The administration believed that the empowered chiefs would face no problems with the task. However, to the administration's disappointment, it became increasingly difficult to allocate enough labor to carry out public works. In a letter to the secretary of state for colonies, Governor Bowring argued that this was because of "the general breaking up of tribal authority" and "the enormous increase in the production by natives of economic crops."²⁸ Again, the administration's strategy was to change the ordinance so as to limit the number of maximum working days to twenty-four and give the Africans the right to a minimum wage.²⁹

The difficulties of labor supplies revealed that it was not necessarily a problem with a lack of cooperation among the chiefs. It could equally be a chief's lack of authority as principal in his area of jurisdiction. The administration was responsible for appointing chiefs and claimed that the process had been successful and that, in most cases, chiefs found "popular support among the natives."³⁰ This has, however, been contested by Tony Woods who argues that, in several cases, there existed a general confusion about who

²⁴ PRO, CO 625/2, The District Administration (Native) Amendment Ordinance 1917, The District Administration (Native) Amendment Ordinance, 1917, No. 2.

²⁵ By this time, there was no Department of Native Affairs. Instead, issues of local administration were handled by busy district commissioners (DC) with no interest in direct conflict with the chiefs. There was also a superintendent of Native Affairs who lacked any formal power over the DCs and who did not sit on any of the councils. Accordingly, this superintendent held little power to actually influence the DCs to act tougher with the chiefs. PRO, CO 525/121/7, Memorandum on Native Affairs, 1927, Colonial Office, London.

²⁶ PRO, CO 625/2, The District Administration (Native) Ordinance, 1924.

²⁷ In a standing order in 1924, he stressed that, "It must be clearly understood that the system is in no way intended to revivify or perpetuate governance by native Chiefs. The position of the Principal Headmen under the Ordinance is in no sense similar to the archaic one of the Chief. The Principal Headman and the village headman alike will look at the Resident of their Districts as their Chief." PRO, CO 626/14, Annual Report Native Affairs, 1935.

²⁸ PRO, CO 525/125/16, Letter from Governor to the Secretary of State for Colonies, 30 May 1928.

²⁹ PRO, CO 525/125/16, The District Administration (Native) Amendment Ordinance, 1924.

³⁰ PRO, CO 525/145, Letter from Governor to Secretary of State for Colonies, 17 March 1932.

should be appointed chief.³¹ By using oral information, Woods shows what he calls a “disturbing trend,” namely that many of the appointed chiefs in the southern region held a position either within the planter community or the colonial authorities rather than in their areas of jurisdiction.³² It indicates that many appointed chiefs lacked popular support among local populations. It is thus uncertain if the problem was the chiefs’ unwillingness to act as agents or their limitations as principals.

Meanwhile, the Colonial Office began to criticize Nyasaland for lagging behind the rest of East Africa in the establishment of indirect rule.³³ It was therefore decided that Mr. Alpin, a senior provincial commissioner in Nyasaland, would visit Tanganyika in 1930 to study the system of indirect rule practiced there.³⁴ He toured the country and met with chiefs and DCs. In his report, Alpin recommended that indirect rule should be introduced, but pointed out that several DCs in Tanganyika complained that the speedy process had sometimes led to the appointment of chiefs lacking popular support. Consequently, Alpin concluded that the introduction of indirect rule in Nyasaland should be “evolutionary and not revolutionary.”³⁵

The Colonial Office, however, increased pressure on the Nyasaland government and in 1933 Governor Sir Young felt forced to meet demands from London. In an address to the Legislative Council, he urged the process toward indirect rule be speeded up.³⁶ The Legislative Council passed the Native Authority Bill in an extraordinary session later that year.³⁷ The bill meant that rural communities were to be organized into Native Authorities and to be ruled by local chiefs and his administration. The main responsibility of the Native Authority was to guarantee social stability and to act as judges in cases brought to the Native Court. The bill also formalized rural land tenure systems. Land could not be owned privately or traded. Instead, the village headmen became responsible for the distribution of village land, while the principal headman had overall power of distribution in the communities.³⁸ In addition, the ordinance stipulated that chiefs, if necessary, were to

³¹ Tony Woods, “Capitaos and Chiefs: Oral Tradition and Colonial Society in Malawi,” *The International Journal of African Historical Studies* 23, 2 (1990), 266.

³² There is, for example, one case where the governor’s cook was appointed chief upon his retirement. *Ibid.*, 267.

³³ PRO, CO 626/10, Annual Report on Native Affairs, 1931.

³⁴ The Tanganyika model differed from the most common form of Indirect Rule in British Africa in that it did not give the Native Authorities control over government revenues, and they were not allowed to collect the central government’s taxes. Instead revenue to the Native Authorities was obtained through the collection of local rates and dues. PRO, CO 626/10, Annual Report on Native Affairs, 1931.

³⁵ PRO, CO 515/145, Report on Native Administration in Tanganyika Territory, H.D. Alpin, Secretary for Native Affairs, March 1931.

³⁶ PRO, CO 525/148/5345, *The Nyasaland Times*, Friday 9 June 1933.

³⁷ *Ibid.*; PRO, CO 626/150/2, Letter from Governor Sir Young, to Sir Phillip Cunliffe-Lister, Secretary of State for Colonies, 17 June 1933.

³⁸ Malawi National Archives (MNA), NNM, Report on Native Rights and Land Tenure, The Governor of Nyasaland, September 1936.

issue orders regarding farming methods in order to prevent famine and hunger crises.³⁹ It was the latter that became instrumental in the colonial government's attempt to redirect African farming practices.

Chieftainship in Thyolo and Mzimba

Much of the research on indirect rule in Nyasaland has been geographically biased to events in the southern region. Vail and White have shown that it is not possible to draw any general conclusions that cover the experiences of contemporary Nyasaland.⁴⁰ The divergent processes are confirmed by the two cases in this paper.

Thyolo, with its brief history as an administrative unit (it was established as a district in 1922) fits well into the general pattern of the southern region of Malawi which, in the late nineteenth century, was characterized by a fluid social structure that colonial officers had difficulties adjusting to with their rather static concept of tribes.⁴¹ The 1931 census data shows that Thyolo district was populated by people identified as Mang'anja, Ngoni, Yao, and Lomwe (see Table 1). There was no clear division among the groups; on the contrary they merged together a great deal through intermarriages. The Mang'anja were agriculturalists organized into small kinship-based groups who had populated the area since the eighteenth century. Control over production seldom extended beyond the matrilineage and there is no evidence of regular payment of tributes to the chiefs.⁴² The lives of the Mang'anja changed dramatically during the nineteenth century because of two developments: first, in the mid-nineteenth century the Yao and Ngoni settled in the area populated by the Mang'anja; second, from the late nineteenth century onwards there was an influx of European settlers who established estates in the area. These developments eventually caused the Mang'anja to cultivate the hilly areas of the south.⁴³

The Yao, whose livelihood was based on trade with the Arabs and Swahili on the African east coast, settled in the district in the mid-nineteenth century. They soon started to actively interact with the Mang'anja and became dependent on their ability to provide them with food. Tension arose between the groups when the Mang'anja could no longer provide the increasing number of traders with the necessary provisions. With better arms allocated

³⁹ PRO, CO 626/150/2, The Native Authority Ordinance, 1933.

⁴⁰ Leroy Vail and Landeg White, "Tribalism in the Political History of Malawi," in Leroy Vail, ed., *The Creation of Tribalism in Southern Africa* (Berkeley: University of California Press, 1991), 151–192.

⁴¹ For a summary of the social changes in the contemporary southern region, see, M.L. Chanock, "Ambiguities in the Malawian Political Tradition," *African Affairs* 74, 296 (1975), 326–46; White, *Tribes*; Vail and White, *Tribalism in the Political History*.

⁴² S.S. Murray, *A Handbook of Nyasaland* (London: Crown Agents for the Colonies, 1932), 186–97; Mandala, *Work and Control*, 16–19; MNA, S1/66A-E/37, An outline of the history and political organization of the Chewa (Amang'anja, Achipeta) tribe and associated groups including the—Akokola, Ambo, Amalimba, Asenga, and Batumbuka, known to the early European travelers under the generic title "Marawe" or "Amalawi."

⁴³ Robin Palmer, "Working Conditions and Worker Responses on Nyasaland Tea Estates, 1930–1953," *Journal of African History* 27, 1 (1986,) 106.

through trade with the coast, the Yao managed to reduce the Mang'anja's economic status and drive them further south, where they settled in hilly areas less suitable for agriculture.⁴⁴ In the meantime, the Ngoni, came on foot from South Africa after having escaped Natal, following the rise of the Zulu, and settled in the northern part of Thyolo in the 1870s. Unlike the Yao, the Ngoni soon assimilated and/or interacted with other local groups without any great disturbance.⁴⁵

Table 1: Total population in Thyolo by population group, 1931

Mang'anja	Ngoni	Yao	Lomwe	Others	Total
14152	4461	3082	37116	343	59154

Source: Murray, *A Handbook of Nyasaland*, 187.

When the Europeans came to the area they thus found no agriculturalists in the very fertile areas in the central parts of the district. They took advantage of the situation and by 1880 (prior to colonial occupation) they succeeded in taking control of vast tracks of the most fertile land. Companies such as Blantyre and East Africa Ltd., the British Central Africa Company, and A.L. Bruce Estate, Ltd. signed certificates of claim with the Yao, giving the former rights to the fertile land and soon thereafter establishing estates in the area. Harry Johnston, the first governor of colonial Malawi, later ratified these treaties, which meant that, by the end of the nineteenth century, most of the very fertile land in the central parts of the district was under the control of European owned estates.⁴⁶ These established estates were in need of labor and internal sources were not enough. They therefore began to actively recruit people from Portuguese East Africa (now Mozambique).⁴⁷ These people were known as the Lomwe, the vast majority of whom became tenants on the estates. A large number, however, settled among the Mang'anja peasants in the south of the district.⁴⁸ Returning to Table 1, we can see that the influx of Lomwe people was so great that they outnumbered the other groups by the 1930s.

During the process towards indirect rule it became obvious to colonial officers that the legitimacy of the chiefs was uncertain. The commissioner for the southern province, J.C. Abraham, wrote in 1934 that Thyolo belonged to the number of "congested districts

⁴⁴ John McCracken, *Politics and Christianity in Malawi 1875–1940: The Impact of the Livingstonia Mission in the Northern Province* (Blantyre: Kachere Series, 2000), 34.

⁴⁵ Kings Phiri, "Some Changes in the Matrilineal Family System among the Chewa of Malawi since the Nineteenth Century," *Journal of African History* 24, 2 (1983), 265–66.

⁴⁶ Palmer, *Working Conditions*, 106.

⁴⁷ Wiseman Chirwa, "Alomwe and the Mozambican Immigrant Labour in Colonial Malawi, 1980–1945," *International Journal of African Historical Studies* 27, 2 (1994), 530–31.

⁴⁸ *Ibid.*, 542; Palmer, *Working Conditions*, 106.

where tribes are intermixed and chiefs are less certain of their power and position.”⁴⁹ A few years earlier J.C. Abraham had argued that indirect rule should not be implemented in Thyolo. He claimed that the chiefs were weak and that the magnitude of estates in Thyolo made it impossible to develop any functional Native Authorities.⁵⁰

The Ntondeza chieftainship in southern Malawi is an example of this. The area was visited by the DC in 1924 after the introduction of the District Administration (Native) Ordinance. The aim of the visit was to identify a chief and, after a one-day meeting with the villagers, Ntondeza was appointed. The paradox is that Ntondeza did not even originate from the area but was born in the neighboring Chikwawa district. The area had been under the control of chiefs Kwethemule and Changata, neither of whom were in attendance at the meeting. The author has not been able to trace any historical sources that reveal the reason behind their absence. Nevertheless, the consequence was that Ntondeza took the opportunity to stand in the elections for the area, after being advised to do so by his brother chief Makwira in Chikwawa district. He was appointed by the DC and remained chief until 1965, when he was replaced by Changata.⁵¹

Despite prevailing uncertainties, the governor turned down the suggestion that indirect rule should not be introduced in Thyolo. He feared it would be too complicated to have two parallel administrative systems and that it might give rise to local disturbances.⁵² Instead, the 1933 Native Authority Ordinance divided Thyolo into six Native Authorities (Map 1).⁵³ All chiefs were Mang’anja except for Bvumbwe (Ngoni) and Ntondeza (Makololo).⁵⁴ The colonial administration was aware that appointed chiefs could face difficulties as principals, but took this risk in order to create a coherent administrative system in the protectorate.

The Mzimba district was established in 1925.⁵⁵ Just as in Thyolo, the nineteenth-century history of Mzimba was, to a large extent, affected by migration to the area. In the first half of the nineteenth century the Tonga, Tumbuka, Henga, and Ngonde populated Mzimba and their main economic activities were agriculture, ivory production, and the raising of poultry.⁵⁶ In the mid-nineteenth century the Ngoni entered the area after trekking

⁴⁹ PRO CO 626/12, Annual Report Southern Province, 1934.

⁵⁰ PRO CO 525/148, Letter from Acting Governor Sir Harber Young to Lord Passfield, Secretary of State for Colonies, Colonial Office, 3 February, 1932.

⁵¹ MNA NAT 1/65/26, The History of Native Authority Ntondeza: A Summarised report reported by subchiefs Kwethemule and Changata, 7 January 1965.

⁵² PRO CO 525/148, Letter from Acting Governor Sir Harber Young to Lord Passfield, Secretary of State for Colonies, Colonial Office, 3 February 1932.

⁵³ These were Native Authorities Bvumbwe, Chimaliro, Nchilamwela, Chimombo, Ntondeza, Nsabwe.

⁵⁴ In contrast to most parts of the southern region where the chiefs often belonged to the Yao. See Vail and White, *Tribalism in the Political History*, 166–73.

⁵⁵ MNA DCM 3.2.1, Report on suggestion for indirect rule of Mzimba District, 1938, by Fairfax Franklin, District Commissioner Mzimba.

⁵⁶ Vail and White, *Tribalism in the Political History*, 152; McCracken, *Politics and Christianity*, 119.

from Natal.⁵⁷ Their military and administrative capacity enabled them to mount attacks and defeat existing societies, including the most prominent of the Tumbuka chiefs, Chikulamayembe VIII, whose people were captured. By the end of the 1850s, the Ngoni had managed to take control of large parts of the district.⁵⁸

In contrast to the Yao in Thyolo, captives taken by the Ngoni at the time of the war were not used for the slave trade but were incorporated into the state system as dependents of the chief and his administration.⁵⁹ This was made possible by the sophisticated administrative system and well-defined hierarchal order of the state. Ngoni society, unlike that of the Thyolo, was based on a relatively complex and well defined political structure. At the top of the hierarchy, the paramount chief (*Inkosi*) had responsibility for matters concerning the whole society, such as borders and land disputes. Below him were a councilor (*Induna*), subchiefs (*Inkosana*), a group of village headmen (*Mulunuzana*), and a village headman (*Mwene komuzi*).⁶⁰ Hence, the overall picture of Mzimba in the late nineteenth century was the domination of one relatively complex state system based on tribute rather than raiding.⁶¹

By 1896 when the rest of the protectorate was under colonial taxation, Governor Sir Johnston stated that "Hitherto the Ngoni chiefs have shown themselves capable of managing the affairs of their own country without compelling the interference of the administration of the protectorate."⁶² As a matter of fact, the political strength of the Ngoni society made it difficult for the colonial government to take control of the area. It was not incorporated into the protectorate until 1904 (i.e., twelve years after the establishment of the protectorate), when a contract was signed between the paramount chief and the colonial authorities granting the latter the right to tax the Ngoni, while the British recognized the Paramount Chief M'belwa (known as *Inkosi Ya Makosi*) as the head of the Ngoni.⁶³ It

⁵⁷ The Ngoni who came to Mzimba consisted of refugees from the wars following the creation of the Zulu empire in Natal during the 1820s. They were led by Paramount Chief M'belwa when they arrived in Mzimba in the 1850s. Vail and White, *Tribalism in the Political History*, 152.

⁵⁸ Some of the pre-existing societies remained intact, like the Ngonde and Tumbuka, but were forced to pay tribute to the Ngoni society. McCracken, *Politics and Christianity*, 36–37.

⁵⁹ Ibid.

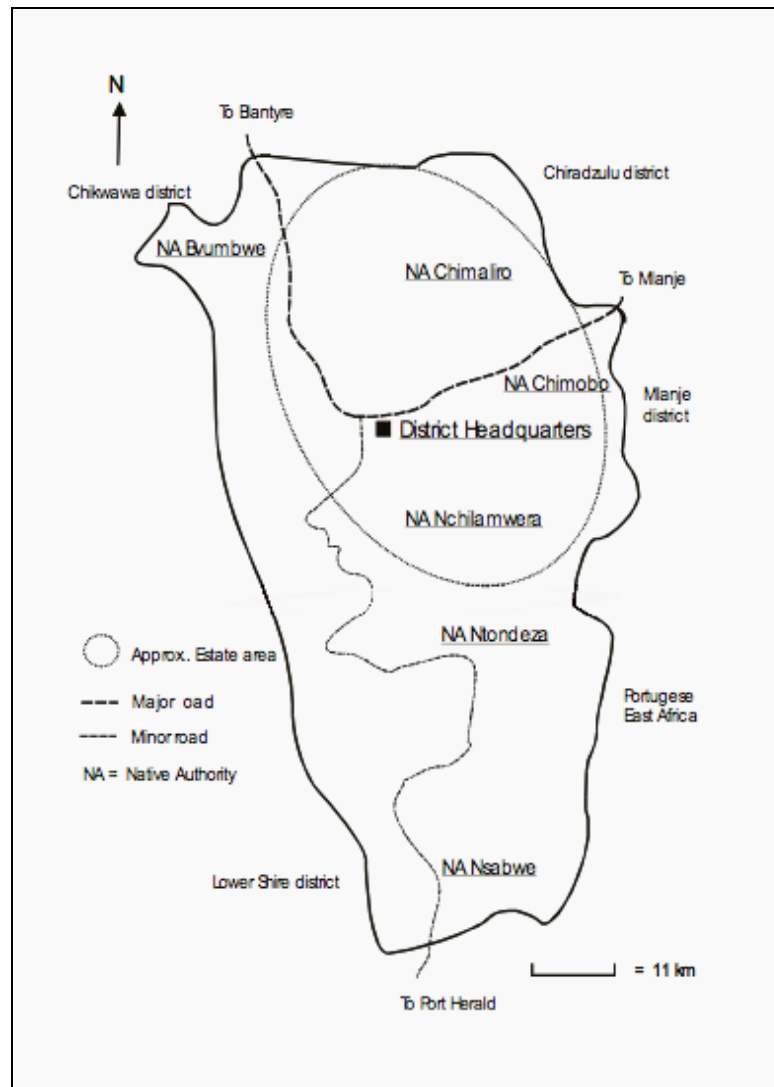
⁶⁰ MNA S1/18.F/38, Annual Report Mzimba District, 1937.

⁶¹ Ministry of Agriculture and Natural Resources (1978a), *South West Mzimba: A Farm Management Survey of Smallholders on South West Mzimba*, Report No. 29, Zomba, Malawi Government.

⁶² Colin Baker, "Tax Collection in Malawi: An Administrative Story," *International Journal of African Historical Studies* 8, 1 (1975), 43.

⁶³ Baker, *Tax Collection*, 43. A combination of internal weaknesses in the Ngoni society and a willingness of the British administration to give extended powers to the local chiefs led to an agreement on the inclusion of the Ngoni into the protectorate in 1904. While Ngoni society was still capable of protecting itself from outside threats, it had already started to show signs of internal weaknesses in the late nineteenth century. The success of Ngoni had partly been based on their superior weapons. Once Angoniland was established, weapons were spread to the local villages and people stocked their villages to defend themselves against the Ngoni. McCracken, *Politics and Christianity*, 119–21, 43–44.

hence seemed like the paramount chief and the subchiefs had the powers to act as principals.

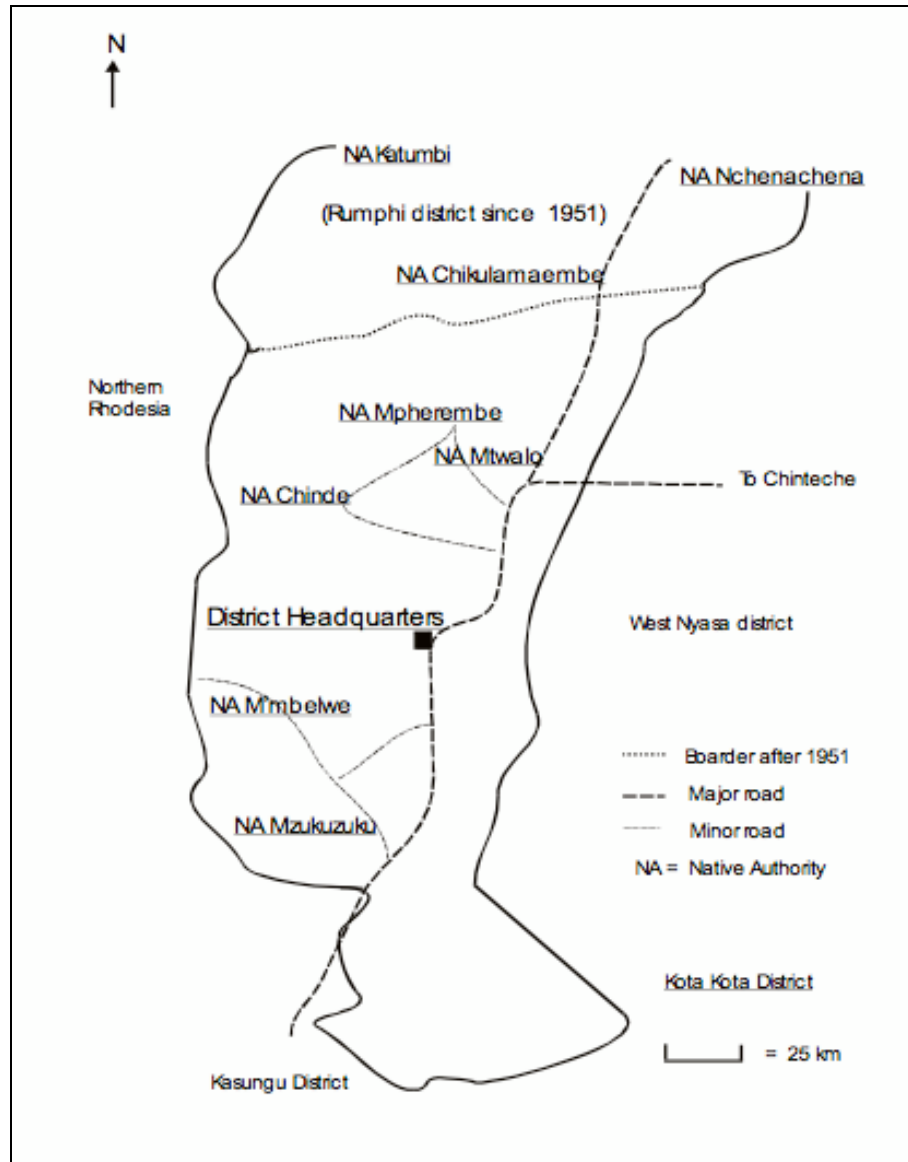


Map 1: Map of Thyolo District, 1938. Note: The map has been modified by Erik Green. Source: MNA SI/17-E.

Yet, the colonial authorities found it difficult to ensure that Ngoni chiefs would act as agents of the protectorate. The colonial officials constantly complained about the difficulties of cooperating with the Ngoni. In 1913, the governor confidentially remarked on the colonial authorities' problems with the Ngoni, that nothing would "benefit them (the administration, *author's note*) or the country more than to shoot a few down, burn their villages, deport the so-called chiefs and confiscate their cattle."⁶⁴ Frustration arose from the fact that the government believed that Ngoni chiefs helped their people to escape

⁶⁴ Major Pearce's confidential notes on Nyasaland (August 1913), cited in Vail and White, *Tribalism in the Political History*, 161.

paying hut tax by encouraging temporary migration to South Africa and southern and northern Rhodesia. A salient feature of the district was the large number of people that temporarily left the district to work in the mines in South Africa or on the estates in southern Rhodesia. The paramount chief consequently argued that it was the taxation that forced people to migrate since there was “no money in this country.”⁶⁵



Map 2: Map of Mzimba District, 1937. Note: Modified by Erik Green. Source: MNA MN/4/1/15.

In contrast to Thyolo, the basic problem in Mzimba, according to colonial officials, was hence not the chiefs' abilities to act as principals but their willingness to act as agents to the colonial administration. The conflict between Ngoni chiefs and the colonial administration escalated in 1915 when the paramount chief refused to collect labor and food for the British military. Colonial authorities were quick to respond and removed him

⁶⁵ Cited in Vail and White, *Tribalism in the Political History*, 161.

from office, sending the chief to the southern Province and declaring that the only power to be recognized was “the power of the government represented by the resident.”⁶⁶ The subchiefs were reduced to mere assistants to the DC.⁶⁷ This led to protests among the subchiefs who threatened to no longer recognize the colonial government as rulers of the area.⁶⁸ The protests had little effect and it was not until 1924 that Lazaro Jere, the son of the former paramount chief, was allowed to return to Mzimba and four years later was allowed to be installed as principle headman. Although recognized as a chief, he was still not granted the right to collect tribute and recruit labor for communal development.⁶⁹

On 31 July 1931, the secretary and assistant secretary of Native Affairs visited Mzimba to discuss the implementation of indirect rule with the paramount and subchiefs. The colonial authorities proposed a solution that would further strengthen the subchiefs by appointing them as chiefs with the same powers as Lazaro Jere. Contrary to the hopes of the authorities, the suggestion led to protests, not only among the subchiefs but also the Mombere Native Association.⁷⁰ This time, the colonial government decided to change its policy towards the Ngoni and in 1933, the paramount chief was recognized.⁷¹

The subchiefs’ protests were not the sole cause of the change in policy. Equally important was the government’s realization that by recognizing the paramount chief, they could make him an ally in their attempt to control migration. This was in a period when people continuously crossed borders without applying for passports at the district commissioner’s office.⁷² Initially, as shown above, the colonial administration had blamed the paramount chief for encouraging people to migrate. Yet, during discussions on indirect rule in Mzimba, they found that he too was worried about the continued increase of people leaving the district since it threatened his powers as a “traditional” ruler.⁷³ By recognizing the paramount chief and allowing him to collect tribute, the colonial authorities believed their common interests would enable collaboration to find measures to decrease the

⁶⁶ Cited in McCracken, *Politics and Christianity*, 337.

⁶⁷ Vail and White, *Tribalism in the Political History*, 162.

⁶⁸ DCM 3.2.1, Report on suggestion for indirect rule in Mombera district, 1938, by DC Mzimba Fairax Franklin.

⁶⁹ Vail and White, *Tribalism in the Political History*, 162–63.

⁷⁰ The Mombera Native Association was established by a number of Livingstonia-educated clerks, teachers and clergymen in 1919. Although it also consisted of Tumbuka people, it became an important voice for the views of the Ngoni elite.

⁷¹ As a matter of fact, by 1930 the subchiefs had already started to recognize the paramount chief and allow him to collect tribute. McCracken, *Politics and Christianity*, 338; MNA S1/112.F/34, Annual Report Mzimba District, 1934.

⁷² There is no data for the whole district, but local surveys in connection with tax collection in the 1930s, showed that in some cases more than 30 percent of the male population were absent, and in other villages the figure exceeded 50 percent. PRO CO 525/161, Report of the Committee appointed by His Excellency the Governor on inquiry into migration labour, 1935; MNA DCM2.3.1, Report on Indirect Rule in Mombera District, 22 January 1938.

⁷³ MNA DCM2.3.1, Report on Indirect Rule in Mombera District, 22 January 1938.

number of people leaving the district. Theoretically, one can argue that by identifying a common interest between the colonial administration and the chiefs, the PA dilemmas were, by definition, resolved. There was no longer a need to discipline the chiefs.

Hence, when indirect rule was introduced, Lazaro Jere revived the title of paramount chief, banned since 1915. Indirect rule in Mzimba was thus to a great extent based on the pre-existing hierarchical principles of the Ngoni society.⁷⁴ The district was divided into ten Native Authorities and their locations are shown on Map 2.⁷⁵ The paramount chief was to act as president of a council that included the principal headmen of each section.⁷⁶

Intervention and the Dual Identities of Chiefs in Thyolo

One main characteristic of the Thyolo district was its high population density. The average population density in 1929 was calculated to be 117.5 people per square kilometer. The population was not evenly spread. In 1942, the director of agriculture claimed that, in the most populous areas in the south, the population density was almost 600 people per square kilometer.⁷⁷ The high densities meant that Thyolo became one of the first districts in Nyasaland where the department of agriculture actively began to persuade farmers to change farming methods in order to prohibit soil erosion.

Regulations and propaganda concerning African agriculture in Thyolo were initially not concerned with farming methods but with deforestation. In 1934 the Native Authorities of Nsabwe and Ntondeza, in the south of Thyolo, issued orders prohibiting the destruction of trees on hill slopes and the early burning of various village forest areas.⁷⁸ By 1935, approximately 100 ha of land in the south of Thyolo had been proclaimed village forest areas.⁷⁹ At the same time, land use regulations were extended to include wetland agriculture in order to protect stream banks. The policy was to prohibit the cutting down of trees along stream banks, as it was argued that trees helped to keep streams flowing during

⁷⁴ MNA DCM 3.2.1 Report on suggestion for Indirect Rule in Mzimba District, 1938 by DC Mzimba Fairax Franklin; Bridglal Pachai, "African Initiatives in Local Administration in Colonial Malawi: The Case of the M'mbelwa African Administrative Council in Mzimba District," in Roderick J. MacDonald, ed., *From Nyasaland to Malawi—Studies in Colonial History* (Nairobi: East African Publishing House, 1975), 190–95; Vail and White, *Tribalism in the Political History*, 160.

⁷⁵ Native Authority M'mbelwa, Mtwalo, Chinde, Alifeyu, Yakobe, Packford, Mzukuzuku, Mpherembe, Chikulamaemba and Katumbi. When Mzimba in 1951 was divided into Rumphu and Mzimba districts, the latter no longer included Native Authority Chikulamaemba and Katumbi. Note also that NA Alifeyu, Pickford, and Yakobe are not included in the map probably because of mistakes made by the original creator of the map.

⁷⁶ PRO CO 525/154, Letter from Acting Governor of Nyasaland to the Secretary of State for Colonies, Colonial Office, London, 1934.

⁷⁷ MNA Malawi Population Census, 1966, National Statistical Office, Public Library; PRO CO 626/22, Annual Report Department of Agriculture, 1942.

⁷⁸ MNA, S1/88.C/35, Cholo District Annual Report, 1934.

⁷⁹ MNA S1/74.C/36, Annual Report Cholo District, 1935.

the dry season because of shade and, at the same time, the binding agency of their roots prevented widening of the streambeds.⁸⁰ Despite these measures, forest and stream bank regulations were notoriously neglected in the 1930s and 1940s. For example, in 1941 the Conservator of Forest reported to the Native Welfare Committee that much of the forest at the Chiromo border, under protection since 1938, was now cleared and cultivated.⁸¹ Fifteen years later, in 1953, director of agriculture R. Kettlewell wrote with reference to southern Thyolo that Africans “hoed practically into the streams.”⁸²

The Lomwe immigrants were blamed for these developments. The colonial government had initially welcomed immigration mainly because of labor shortages faced by the European controlled estates. When indirect rule was introduced in Thyolo it had, after lengthy discussions, been decided to not recognize the Lomwe as a tribe. It was feared that appointments of Lomwe chiefs would encourage Lomwe tenants to leave the estates, as tribal recognition would be the same as accepting them as residents with rights to settle on their own Native Trust Land.⁸³ In reality, many but not the majority of the Lomwe already lived on Native Trust Land, in areas controlled by appointed Mang'anja chiefs. There are no figures on the number of migrants who settled on Trust Land. However, in 1951 the DC estimated approximately two-thirds of the population, cultivating near and on stream banks, to be Lomwe.⁸⁴

In 1932, the colonial government took active steps to discourage further immigration to congested areas. DCs were advised to take disciplinary action against chiefs and village headmen who allowed unauthorized settlements.⁸⁵ Despite these measures, it was reported that members of the Lomwe continued to settle in the NA Nsabwe and Ntondeza area without permission.⁸⁶ The DC claimed that the basic problem was weak chiefs lacking powers to act as principals. This came as no surprise. Just one year after the implementation of indirect rule, the commissioner for the southern province, Eric Smith, wrote that “[...] NA Ntondeza and Nsabwe show neither energy nor influence. They exercise no control over people's movement or for example cutting down timber.”⁸⁷ This was of course of great embarrassment to the colonial government, which had earlier neglected warnings from Mr. Alpin against introducing indirect rule in Thyolo. The colonial authorities began to criticize the NA in southern Thyolo. NA Nsabwe and Ntondeza were blamed for showing little interest in local development as it was found that minimal capital, obtained through the Native Treasuries, had been invested in local

⁸⁰ PRO CO 626/13, Annual Report of the Forestry Department, 1934.

⁸¹ PRO CO 525/191/11, Minutes of the 43 meeting of the Native Welfare Committee, 2 June 1941.

⁸² MNA AGR. 1, Annual Report, Department of Agriculture, 1953.

⁸³ MNA S1/74.C/36, Annual Report Cholo District, 1935.

⁸⁴ MNA A.AB.4, Statement of District Police, Cholo District, 1951.

⁸⁵ Chirwa, *Alomwe*, 546.

⁸⁶ MNA S1/66.C/37, Annual Report Cholo District, 1936.

⁸⁷ PRO CO 626/14, Annual Report Southern Province, 1934.

infrastructure. In addition, villagers were never gathered to discuss common problems.⁸⁸ Chief Nsabwe was further criticized for not even being able to influence the village headmen, while chief Ntondzea, on the other hand, was accused of being interested only in his own personal wealth.⁸⁹

The colonial administration had no intention to end regulations despite difficulties in prohibiting deforestation. On the contrary, from the mid-1930s they went one step further and began attempts to directly influence farming methods in order to prevent further soil erosion. In 1935, Soil Conservation Officer P. Topham, visited southern Thyolo to investigate problems of soil erosion in the southern parts of the district. He argued that the high population density, combined with surrounding mountainous areas, would soon result in topsoil erosion if new measures were not taken. He concluded that the erosion of soil was now so bad that comprehensive action, including changes in farming methods, had to be taken.⁹⁰

In 1937 the DC of Thyolo agreed to approach NA Nsabwe and Ntondzea and, in line with the Native Authority Ordinance, tried to persuade them to issue orders to abandon mound agriculture in favor of ridge agriculture, in order to protect the soil from erosion. Southern Thyolo was therefore, together with northeastern Chikwawa and the Port Herald districts, among the first areas where ridge regulations were tried.⁹¹ Given that the chiefs were presumed weak, it seems plausible to assume that the transformation from mound to ridge cultivation would be a long and difficult process. Contrary to expectations, however, by 1941 the soil conservation officer reported that "ridge cultivation has been taken up by natives with a remarkable degree of success."⁹² By the mid-1940s, the Department of Agriculture could report that the majority of gardens were ridged along the contour.⁹³ In fact, the transformation from mound to ridge agriculture was regarded so successful that it was decided in 1950 to take aerial pictures over the area to provide evidence of the African farmers' acceptance of the regulations.⁹⁴

Why was the colonial administration so successful in promoting ridge cultivation at the same time as forest and stream bank regulations were continuously violated? The answer to that question is that the weak chiefs were not needed to persuade farmers to shift

⁸⁸ MNA S11/3/1/15, Annual Report Cholo District, 1945.

⁸⁹ MNA S1/74.C/36, Annual Report Cholo District, 1935.

⁹⁰ Soil Erosion Control: Plan for Operation: Cholo districts, by Topham, Soil Erosion Officer, enclosed in PRO CO 626/18, Native Welfare Committee Annual Report, 1935.

⁹¹ Mandala, *Work and Control*, 206.

⁹² CO 525/191/11, Minutes of the 43 meeting of the Native Welfare Committee, 19 February 1941.

⁹³ William Beinart, "Soil Erosion, Conservation and Ideas of Development: A Southern African Exploration, 1900-1960," *Journal of Southern African Studies*, 11, 1 (1984), 71.

⁹⁴ William Beinart, "Agricultural Planning and the Late Colonial Technical Imagination: The Lower Shire Valley in Malawi, 1940-60," in *Malawi—An Alternative Pattern of Development* (seminar proceedings, No. 25, University of Edinburgh, 1985), 109. The photographs are, unfortunately, not to be found in the Malawi National Archives, the Public Record Office in London, or the Rhodes House Library in Oxford.

from mound to ridge cultivation. The forest and stream bank regulations, on the other hand, were opposed directly by the chiefs since they conflicted with their immediate economic interests.

Contrary to lacking power in preventing Lomwe immigration, the chiefs actively supported the settlement of Lomwe migrants in the area. It is a well-known fact that chiefs in the Shire Highlands distributed land to the Lomwe people in exchange for cotton in the early twentieth century when the supply of land was still relatively large.⁹⁵ Less known is that this practice continued into the 1930s. The DC of Thyolo concluded in 1935 that there were Lomwe people along the border with Portuguese East Africa who cultivated cotton for the chiefs.⁹⁶ There exists no detailed information on transactions between the Lomwe and the chiefs. One should therefore be careful to draw any definite conclusions. However, the existing information suggests that chiefs took advantage of the situation. It gave them the possibility to exchange land for labor. Migrants also purchased the usufruct rights to land. For example, in 1935 it was reported that chief Nsabwe allowed land to be opened up in village forest areas for “those that are paying the highest price.”⁹⁷ In order to continue this practice, protected land had to be opened up. The regulations conflicted with the economic interests of the chiefs and were therefore continuously violated. Chief Nsabwe’s and Ntondeza’s control over land distribution enabled them to act as principals and to coerce Lomwe immigrants to work in their interests. Chiefs in Thyolo acted on behalf of their own economic interests as commercial agriculturalists rather than as political representatives of their subjects.

The introduction of ridge cultivation, on the other hand, did not conflict with the chiefs’ economic interests. Yet, for the farmers the changes were noticeable in many ways. Firstly, the shift from mound to ridge cultivation demanded more labor. It also extended the agricultural season since land preparation had to begin earlier, in order to finish making the ridges before the early rains in November. In addition, contour ridges made out of grass reduced the size of the arable land and thus limited the already small cultivable area.⁹⁸ The creation of ridges therefore limited supplies of both land and labor. It was hence, even for the colonial administration, quite surprising that it was not met with much resistance.⁹⁹ Could it be that chiefs and village headmen used all the powers they had to force the farmers to follow regulations? This seems unlikely given the relative weakness and lack of interest among the chiefs, as discussed above. They neither had the capacity nor the willingness to discipline the farmers.

The relatively successful shift from mound to ridge cultivation was economically beneficial to the farmers. The advantage of ridge cultivation was that it reduced the amount of labor needed during peak season since less time had to be spent on weeding as the

⁹⁵ Chirwa, *Alomwe*, 536.

⁹⁶ The reason why this production is not shown in the production data (see above) is that it was sold in markets in Chikwawa district. MNA S1/74.C/36, Cholo District Annual Report, 1935.

⁹⁷ MNA S1/74.C/36, Annual Report Cholo District, 1935.

⁹⁸ Beinart, *Agricultural Planning*, 109.

⁹⁹ MNA ADM 5, Annual Reports Cholo District, 1951–52.

growth of weeds was suppressed when covered with heaped up soil. By reducing the amount of labor needed for weeding, ridge cultivation released labor that could be temporarily used on European controlled estates in the central part of the district, a very important source of income for the people in southern Thyolo. In fact, a significant feature of rural societies in southern Thyolo was the extent to which farmers combined farming with casual labor on the estates. In 1941 it was calculated that 41 percent of the total labor force on the estates in Thyolo consisted of African farmers providing day labor.¹⁰⁰ In 1950 it was estimated that approximately 63 percent of all able-bodied males situated on Trust Land were employed as casual laborers on the estates. Women also provided a substantial amount of labor although no notes on actual numbers were made.¹⁰¹ Demand for casual labor on the estates peaked at the same time as demand for labor on African farms (November to April)¹⁰² and so created imbalances in the allocation of labor between farm and off-farm work. By the early 1950s, chief Chimombo in central Thyolo concluded in his area that, "There is no longer enough labour to further increase production."¹⁰³ The shift to ridge cultivation played an instrumental role in partly easing the conflict by reducing the number of people needed for weeding. While the anti-erosion measures demanded more labor on the farm, it reduced the number of people needed during peak season and hence eased the common challenge of combining farming with casual labor on the estates.

An additional, but geographically limited, explanation to the rapid diffusion of ridge cultivation was its connection to the expansion of banana cultivation on a commercial basis. Banana trees have been grown in southwest Thyolo since the nineteenth century, but the bananas were only used for consumption. However, intensified cultivation of banana trees began in the late 1940s and the fruit soon became an important source of income among farmers in the area.¹⁰⁴ They sold their bananas to the urban areas of Limbe

¹⁰⁰ Palmer, *Working Conditions*, 108.

¹⁰¹ In 1950, temporary employment on the estates generated a total sum of £204,048 in wages, whereby the value of total sales of maize sold by peasant-farmers (both to the government controlled Maize Control Board and directly to the estates) amounted to only £20,816, i.e., 10 percent of the wages. Rhodes House Library (RHL), Mss. Afr. S. 997, Enquiry into the Shortage of Labour in the Cholo and Mulanje Districts with particular reference to the Tea Industry, 1951.

¹⁰² Palmer, *Working Conditions*, 108.

¹⁰³ RHL, Mss. Afr. S. 997, Enquiry into the Shortage of Labour in the Cholo and Mulanje Districts with particular reference to the Tea Industry, 1951.

¹⁰⁴ There are no figures for actual banana sales during the period, but by the mid 1960s, 8,000 short tons were transported from the area and in the mid-1970s the figure was 16,000 short tons. In addition, in district reports the sales are mentioned and it is argued that what is witnessed during the 1950s is a fantastic expansion of sales. See MNA, Annual Report Department of Agriculture, 1966 and 1974, Public Library; MNA, ADM 5, Annual Reports Cholo District, 1951–52; MNA 4.7.5F/4523, Annual Reports Cholo District, 1957–59.

and Blantyre, situated approximately 80 kilometers north of the area.¹⁰⁵ The expansion of banana production occurred after farmers discovered, through trial and error, that banana trees grew very well on the contour. As the trees increased the fertility of the soil, the roots bound nutrients to the soil. The shade provided by the leaf of the trees further reduced the weeds and thus decreased the demand for labor during weeding.¹⁰⁶ Farmers could hence meet the increased demand for bananas in the growing urban centers of Limbe and Blantyre by further intensifying the cultivation of banana trees on the contour ridges. Very little extra work was needed for the cultivation of the trees once the ridges were established. As a consequence, the expansion of banana production was driven by the possibilities of intensifying land use, saving labor and generating income, without the need to reallocate labor time on the farm.

The shift from mound to ridge cultivation seems to be explained by economic motives. The farmers and colonial authorities shared an interest and so the principal-agent problem was minimized. The colonial authorities were not dependent on the chiefs' and village headmen's abilities to control their subjects, and the chiefs' weak capacity as principals never became a problem for the colonial authorities.

Enforcement and the Limited Powers of Chiefs in Mzimba

Agricultural extension work in Mzimba first began after the Second World War. The colonial administration regarded Mzimba as a district belonging to the "Dead North," meaning that it was inaccessible for commercial investments.¹⁰⁷ Eric Smith, the administrative officer, reported in 1937 to the chief secretary on the prospects of the district "[...] from a point of view of economic conditions this is undoubtedly one of the most depressed districts of the protectorate."¹⁰⁸ The British therefore initially showed a reluctance to invest in agricultural extension services in the area. After the Second World War, with new funds made available by the Colonial Development Act, a national strategy of agricultural extension services was established and work began modestly in the Mzimba district. The first agricultural officer, covering the entire Northern Province, was employed in 1949.¹⁰⁹

Just as Vaughan and Moore argue with the case of the Bemba people in Zambia, the Ngoni were known by colonial authorities for two things: their relatively complex

¹⁰⁵ The most common strategy for farmers was to come together and rent transport to pick up the bananas, but private traders also bought bananas in the villages. MNA, ADM 5, Annual Reports Cholo District, 1951–52.

¹⁰⁶ MNA, ADM 5, Annual Reports Cholo District, 1951–52.

¹⁰⁷ The phrase was first used in the first agricultural survey conducted in Mzimba District in 1937. Report on the Agricultural Survey of the five most Northern Districts of Nyasaland, 1938, PRO, CO 525/181/44128/3.

¹⁰⁸ PRO, CO 525/166, Letter from Administrative Officer, Eric Smith, to Chief Secretary regarding Native Tax Enquiry, 19 April 1937.

¹⁰⁹ PRO, CO 1015/15, Progress Report for 1952 on the Nyasaland Agriculture Department Scheme, D 1550, enclosed in dispatch from the Governor to the Secretary of State for Colonies, 7 July 1953.

chieftainship system and their wasteful agricultural methods.¹¹⁰ The initial agricultural extension work was characterized by an attempt by colonial authorities to utilize the former in order to alter the latter. As shown above, the common interest of restricting migration made the colonial officials believe that chiefs would act as agents of the colonial administration on a wide range of issues.

Work concentrated on two areas. First, to introduce ridge cultivation and, second, to prohibit a specific form of shifting cultivation, known locally as *visoso*.¹¹¹ This was a method only applied in the cultivation of finger millet, which was, after maize, the second most important crop. A farmer opened up new land by felling young trees or cutting down branches of large trees in virgin or regenerate areas, piling the wood up in a number of circular heaps on roughly tilled land. After allowing it to dry, the wood and grass were burnt down to ashes in which the finger millet seed was eventually sown by broadcasting.¹¹² The colonial authorities argued that it was destructive as it not only denuded the land of its natural vegetation but also depleted the soil of organic matter, leading to a rapid and serious loss of soil. It required large tracts of land to be used even when the acreage cultivated was small.¹¹³ They were equally worried about its effect on deforestation as land prepared in this way, despite producing good crops, was dependent on regularly opening up new land.¹¹⁴

The regulations on ridge cultivation were initially met with resistance among farmers. The DC, together with the agricultural officer, held several meetings with farmers in 1948, in order to investigate local opinions. Thousands of people were reported to have attended, including a number of women. From the meetings, District Commissioner C.W. Benson reported that, "intense opposition were shown everywhere."¹¹⁵ In 1950 it was reported only 9 percent of the gardens in north Mzimba were ridged, while in the central and southern regions of the district almost nothing had happened. The situation regarding *visoso* was even worse, with no improvements made at all by the early 1950s.¹¹⁶ Ridges had been used before the soil conservation programs in the hilly areas of Henga Valley in north Mzimba, but then they were hoed vertically up and down the slopes instead of across

¹¹⁰ Henrietta Moore and Megan Vaughan, *Cutting Down Trees—Gender, Nutrition and Agricultural Change in the Northern Province of Zambia, 1890–1990* (London: James Currey, 1994), 3.

¹¹¹ PRO, CO 626/24, Annual Report Northern Province, 1948. McCracken has revealed that the origin of the authorities position on the *visoso* system can be traced to the end of the nineteenth century, when missionaries began to argue that it was both morally and environmentally destructive. John McCracken, "The Ambiguities of Nationalism: Flax Musopole and the Northern Factor in Malawian Politics, c. 1956–1966," *Journal of Southern African Studies* 28, 1 (2002), 73.

¹¹² PRO, CO 626/24, Annual Report Northern Province, 1948.

¹¹³ PRO, CO 525/176, Report of the Welfare Committee, 1937. Beinart, *Soil Conservation*, 62.

¹¹⁴ PRO, CO 626/24, Annual Report Northern Province, 1948; CO 525/176, Report of the Welfare Committee, 1937; Beinart, *Soil Conservation*, 62.

¹¹⁵ PRO, CO 626/24, Annual Report Mzimba District, 1948.

¹¹⁶ MNA, Annual Report, Department of Agriculture, 1950.

them.¹¹⁷ The farmers in the area claimed that contour ridges would lead to waterlogging and would therefore damage the soil. In the south and central parts of Mzimba, where the soil was sandy, it was believed that ridges would lead to wind erosion.¹¹⁸

Apart from ecological concerns, the regulations were also opposed due to labor shortages. By the mid-1930s there were only 18.6 people per square kilometer, and in 1966 the estimated population density was 36 persons per square kilometer.¹¹⁹ These shortages were reinforced by the continuous increase of migration.¹²⁰ Ridging implied that the soil needed to be hoed into ridges of about half meter high and 60 centimeters wide along the contour throughout the whole area of the field.¹²¹ It was estimated that a farmer could construct 400 to 600 meters of ridges per day in previously non-ridged gardens and 700 to 900 meters in previously ridged ones.¹²² The introduction of ridge cultivation thus implied that more labor had to be invested in the production process. The investments gave no immediate returns in terms of increased yields and farmers, already facing labor shortages, were thus reluctant to start ridging.

The strong opposition to changes in *visoso* came from two factors. The first was finger millet—a crop grown solely by women and used for brewing beer. Selling or bartering beer provided a valuable source of income for buying necessary consumption goods such as soap and salt. Second, and more importantly, beer played a major role for both men and women to recruit additional labor. “Work parties” were a significant institution to acquire additional labor needed for land preparation and weeding. Although the parties differed, beer (sweet or alcoholic) was always offered to the laborers and was considered to be of great symbolic value.¹²³ Cultivation of finger millet was therefore crucial to farmers when allocating additional labor in a context of low land-labor ratios. Different from maize, the output of finger millet significantly decreased when grown in the same garden for more than two years and as fertilizers were not applied, the crop responded well to nutrients from the ashes of burned trees.¹²⁴ A change in *visoso*, with no

¹¹⁷ MNA, S12/1/15, Agricultural Survey, Northern Mzimba Area, 1936; Beinart, *Soil Conservation*, 72.

¹¹⁸ Beinart, *Soil Conservation*, 72.

¹¹⁹ Murray, *Handbook*, 216–16; MNA, Malawi Population Census, 1966, National Statistical Office, Public Library.

¹²⁰ Vail, *The Creation*, 71–72.

¹²¹ Beinart, *Soil Conservation*, 70.

¹²² Mandala, *Work and Control*, 206.

¹²³ Erik Green, “Diversification or De-Agrarianisation? Income Diversification, Labour and Processes of Agrarian Change in Southern and Northern Malawi, mid-1930s to mid 1950s,” *Agricultural History* 80, 2 (2008), 184. It is at this stage not possible to establish if the beer and food were only of symbolic value or they were actually regarded as a form of payment. If the latter is the case, then we could conceptualize the work parties as a form of quasi-wage labor arrangement in line with Tosh arguments about work parties in nineteenth-century West Africa. John Tosh, “The Cash-Crop Revolution in Tropical Africa: An Agricultural Reappraisal,” *African Affairs* 79 (1980), 87.

¹²⁴ PRO, CO 626/24, Annual Report Mzimba District, 1948.

access to chemical fertilizers would therefore decrease the output of finger millet, which would in turn lead to reduced incomes for women and increased difficulties in acquiring additional labor for the household.

The opposition did not create great concern among local colonial officers. They believed that the paramount chief would be of great assistance in spreading information and persuading farmers to follow the regulations. After being heavily criticized in the first two decades of the twentieth century, the paramount chief was now praised by the colonial authorities. In 1940, the provincial commissioner in the Northern Province, J.M. Ellis, wrote that, "Amongst the most progressive and successful native administrations is Paramount chief Inkosi M'mbelwa."¹²⁵ Four years later the district commissioner concluded Paramount Chief M'mbelwa to be very efficient and showing great interest in local development.¹²⁶ The subchiefs were also regarded as "progressive" with a few exceptions.¹²⁷ When the district commissioner in 1947 arranged a meeting with the paramount chief and the subchiefs to discuss farming methods, he could with satisfaction report that "the Chiefs are fully aware of the needed changes."¹²⁸ No opposition was expected from them.

The administration's projection seemed initially to be correct, at least with regard to suggested alterations to *visoso* practices. Neither the paramount chief nor the subchiefs initially openly opposed the stipulated regulations. This, however, did not necessarily imply that they agreed with the colonial authorities. On the contrary, the paramount chief actively delayed the process. In 1948, M'mbelwa informed District Commissioner Benson that he could not issue any orders prohibiting the annual opening of new gardens without consulting his subchiefs, since he had no powers to regulate land use in the subchiefs' areas. After lengthy discussions, M'mbelwa revealed that he was partly prepared to meet the demands of the agricultural department by introducing new measures to regulate the process. It was decided that in order to open up a new garden, it was necessary to apply for permission from an officer within the Native Authority with a rank no lower than councilor, i.e., the group of people personally selected by the paramount chief and who were under his control.¹²⁹ The colonial government hoped that this would be enough to at least slow down the process of annual opening of gardens.¹³⁰ To their disappointment it had no effect.¹³¹ When the director of agriculture, R.W. Kettlewell, visited Mzimba in

¹²⁵ PRO, CO 626/24, Annual Report Northern Province, 1948.

¹²⁶ MNA, NN 4/1/15, Annual Report Mzimba District, 1944.

¹²⁷ For example, the DC argued in 1948 that Subchief Mtwalo had become old and senile and that he therefore contributed little to any kind of agricultural extension work in the district. PRO, CO 626/24, Annual Report Mzimba District, 1948.

¹²⁸ MNA, NN 4/1/17, Annual Report Northern Province, 1947.

¹²⁹ PRO, CO 626/24, Annual Report Mzimba District, 1948.

¹³⁰ MNA, NN 4/1/17, Annual Report Mzimba District, 1947.

¹³¹ MNA, PCN 1/2/42, Letter from Provincial Agricultural Officer, Northern Province to the District Commissioner in Mzimba, 8 October 1951, ref no. 3/6.B.

1952, he observed that *visoso* continued to be practiced and that it was common for new gardens to be opened without the permission of the NA.¹³²

The change from mound to ridge cultivation proved to be difficult right from the beginning. Initially, M'mbelwa and his subchiefs had been reluctant to issue orders demanding that all gardens be ridged. In the early 1950s, things seemed to be slowly changing. Despite labor shortages, it was reported in 1951 that the department of agriculture made steady progress in convincing farmers to create ridges.¹³³ By 1951 it was reported that 6,400 miles of bunds had been constructed.¹³⁴ The colonial administration argued that their success in persuading farmers to construct ridges was due to neutralizing M'mbelwa's resistance. By the late 1940s they began to argue that their shared interests in migration was not enough to ensure that chiefs would act on behalf of the protectorate. They hence took steps to link them to the administration. In 1951 it was decided that the Natural Resource Board be decentralized and that provincial and district Natural Resource Boards should be established. Paramount Chief M'mbelwa was appointed as a representative on the provincial board. This made him change his views, according to the colonial authorities, and he actively started to encourage the making of ridges.¹³⁵ It was even decided that M'mbelwa would establish a special court to deal with people refusing to construct ridges.¹³⁶

Yet, the so-called neutralization of M'mbelwa had little impact on the work at ground level. In 1951 the provincial agricultural officer reported to the district commissioner that M'Mbelwa had held no court cases against people refusing to construct ridges.¹³⁷ The paramount chief continued to resist the imposed measures. This did not necessarily imply that he opposed them. An equally valid, although neglected view is that he lacked the powers to interfere in local production processes. From this perspective, it did not really matter to what extent M'mbelwa agreed with colonial policies.

According to the Ngoni elite, the *Inkosi* was known as the "owner" of the land, the "head" of the state and the "father" of his people.¹³⁸ The colonial authorities thought this

¹³² MNA, PCN 1/2/42, Letter from the Director of Agriculture to the Provincial Agricultural Officer, Northern Province, 6 June 1952, ref. no. 18/65.

¹³³ MNA, Annual Report, Department of Agriculture, 1951, Public Library.

¹³⁴ McCracken, *Politics and Christianity*, 74.

¹³⁵ O. Wapulumuka Mulwafu, "Conservation of Peasantry in Colonial Malawi: The Role of NRB, 1946–1964" (unpublished paper presented at the History Seminar Series, History Department, Chancellor College, Malawi, 1997), 171–72.

¹³⁶ MNA, PCN 1/2/42, Letter from Provincial Agricultural Officer, Northern Province to the District Commissioner in Mzimba, 8 October 1951, ref no. 3/6.B.

¹³⁷ MNA, PCN 1/2/42, Letter from Provincial Agricultural Officer, Northern Province to the District Commissioner in Mzimba, 8 October 1951, ref no. 3/6.B.

¹³⁸ Margaret Read, "Tradition and Prestige among the Ngoni," *Africa: Journal of the International African Institute* 9, 4 (1936), 461. Authors such as Vail and White, *Tribalism in the Political History*, have pointed out that Read's study must be treated with caution since it is very much written in favor of the Ngoni elite's interpretation of the past.

implied that the paramount and his subchiefs had powers to influence farming methods. The idea of using chiefs as tools for colonial intervention was based on the premise that the “strong” chiefs more or less could act as autocrats. What the colonial authorities failed to understand was that the control over land distribution did not automatically enable chiefs to interfere in the production processes. The abundance of land implied that an average household had access to land that enabled opening of new gardens for decades. Within these boundaries neither the chiefs nor the village headmen had powers to interfere.¹³⁹ In that regard, the chiefs were not able to perform as principals and to what extent they were for or against the stipulated regulations mattered less.

An alternative interpretation is that chiefs were unwilling to act as agents for the colonial authorities. A prohibition of *visoso* and enforcement of ridge cultivation meant the chiefs would use powers granted by the Native Authority Ordinance but that had no history within Ngoni society. M’mbelwa’s powers were weakened by the continued increase in people temporarily leaving the district for employment in South Africa and Rhodesia. He was further weakened by internal opposition. The chieftainship had continuously been threatened by revolts, especially from the Tumbuka, until they were formally incorporated into the protectorate and hence protected by colonial authorities. To challenge the local population by regulating production processes was thus not without risk.

The little progress made with construction of ridges was probably an outcome of an increased use of compulsory labor. As noted above, the Natural Resource Ordinance (1946) gave the Natural Resource Board the right to litigate farmers and in 1950 the district and provincial commissioners were given the powers to issue orders without agreement from the Native Authority. From the late 1940s, the number of farmers fined increased dramatically. In 1950, 187 people were convicted and in 1951 the number had increased to 849.¹⁴⁰ This had an impact on the transformation from mound to ridge cultivation since the change only affected labor input. The practice of *visoso*, on the other hand, continued. Farmers were prepared to take the risk of being punished as long as the regulations were associated with not only losses of income, but also increased difficulties to access additional labor. The provincial commissioner, Cecil Baker, confessed that enforcement played a major role but argued that, “independently of this fact, there are quite definite signs of willingness to co-operate among the chiefs.”¹⁴¹ In reality, the chiefs were bypassed.

Conclusion

Indirect rule reveals the ambiguousness of colonial rule. It was based on social conservative ideas at the same time as it was supposed to facilitate change through colonial intervention in local farming systems. This paper addresses these ambiguities by focusing on the role of indirect rule in the early years of colonial intervention in rural Nyasaland. It

¹³⁹ MNA, NNM 1/10/7, Provincial Commissioner’s report to Chief Secretary on Natives Right and Tenure in Mzimba, 1945.

¹⁴⁰ PRO, CO 626/25, Annual Report Northern Province, 1951.

¹⁴¹ PRO, CO 626/25, Annual Report Northern Province, 1949.

compares two districts: Thyolo, where chieftainship was regarded as fluid by the colonial authorities, and Mzimba district in which the local hierarchies were believed to be well defined. The findings from Thyolo and Mzimba suggest that the role of indirect rule, in terms of facilitating or hampering colonial intervention, should not be exaggerated. The system of indirect rule depended on a chief's capability and willingness to act as both agent and principal. The colonial authorities had to ensure that chiefs acted as agents for the government while at the same time holding powers to control its subjects. This made the system very complex and difficult for the colonial administration to utilize for their purposes.

A chief's willingness to act as agent was affected by his own economic interests as well as his role as a representative of the local community. Colonial officials recognized that chiefs from time to time openly opposed colonial policies but assumed that they acted on behalf of their subjects. That opposition could occur as a result of a chief's individual and economic interests was never taken into consideration. A chief's ability to act as principal was equally a delicate matter for the colonial authorities. Colonial officials were aware of problems when choosing chiefs and knew that appointed chiefs in some cases lacked popular support, thus limiting possibilities to control subjects. Meanwhile, the colonial authorities believed that "strong" chiefs could act as local autocrats and enforce rules as they liked. The case of Mzimba reveals that this was far from certain. The chiefs, known by colonial authorities to be quite powerful seemed to lack the power to regulate local production processes, or were at least unwilling to exercise their power. The former implied that they were not able to act as principals, while the latter interpretation suggests that they were unwilling to act as agents of the colonial authorities. Notwithstanding, it reveals how indirect rule did not facilitate colonial intervention.

In cases where colonial authorities influenced local production processes, the final changes had little to do with the actions from chiefs. The changes were either an effect of shared interests between the colonial administration and the farmers, which implies that the principal-agent problem was dissolved, or an outcome of the increased use of force and implementation of repressive laws by the colonial government. It shows that it was possible for colonial officials to bypass the chiefs, at least as long as interventions did not clash with the chiefs' interests. In order to understand the dynamics of indirect rule, we must go beyond questions of imagined or real traditions and beyond chiefs as representatives of either their subjects or the colonial administration and place the emphasis on chiefs as both economic and political actors with varied, but always limited, capabilities to influence local communities.

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